



CHAPTER 44.

An Act to make provision with regard to the rent of houses or parts thereof in Scotland let at a rent which includes payment for the use of furniture or for services.
[11th November 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where the Secretary of State is satisfied on representation by, or after consultation with, the council of any county or burgh that it is expedient that the provisions of this Act should have effect in any area consisting of the whole or part of that county or burgh, he may, by Order, direct that this Act shall have effect in that area as from such day as may be specified in the Order, and this Act shall thereupon come into force in that area.

Application of Act by Order of the Secretary of State, and appointment of Tribunal.

(2) For each area in which this Act is in force there shall be a Tribunal constituted in accordance with the Schedule to this Act, and the provisions of that Schedule shall apply to each Tribunal :

Provided that, if the Secretary of State so directs, the same Tribunal may act for more than one such area.

(3) The sums required for the payment of remuneration and salaries and allowances to the members, acting members, clerks and officers and servants of a Tribunal shall be paid out of moneys provided by Parliament.

2.—(1) Where a contract has, whether before or after the passing of this Act, been entered into whereby one person (hereinafter referred to as the "lessor") grants to another person (hereinafter referred to as the "lessee") the right to occupy

Reference to Tribunal of contracts for furnished letting.

as a residence a house or part of a house situated in an area in which this Act is in force in consideration of a rent which includes payment for the use of furniture or for services, whether or not, in the case of such a contract with regard to part of a house, the lessee is entitled, in addition to exclusive occupation thereof, to the use in common with any other person of other rooms or accommodation in the house, it shall be lawful for either party to the contract or for the local authority for the area to refer the contract to the Tribunal for the area, and where any such contract (hereinafter referred to as a contract to which this Act applies) is so referred to the Tribunal, it shall be the duty of the lessor to give to them such information as they may reasonably require regarding the prescribed particulars relating to the contract.

25 & 26 Geo. 5.
c. 41.

(2) Where any contract to which this Act applies is referred to a Tribunal, the Tribunal shall consider the case and, after making such enquiry as they think fit, and giving to each party (and to the local authority if the house is or forms part of a house or dwelling to which section thirty-nine of the Housing (Scotland) Act, 1935 applies) an opportunity of being heard or, in his option of submitting representations in writing, shall approve the rent payable under the contract or reduce it to such sum as they may, in all the circumstances, think reasonable, and shall notify the parties and the local authority of their decision in each case.

(3) Where the rent payable for any premises has been entered in the register in accordance with the provisions hereinafter contained, it shall be lawful for the lessor or the lessee or the local authority to refer the case to the Tribunal for reconsideration of the rent so entered on the ground of change of circumstances, and the provisions of subsection (2) of this section shall apply on any such reference in like manner as they apply on a reference under subsection (1) of this section subject to the modification that the Tribunal shall have power to increase the rent payable.

(4) The Tribunal shall keep a register and shall cause to be entered therein the prescribed particulars with regard to any contract referred to them in pursuance of the foregoing provisions, including a specification of the premises to which the contract relates and the rent as approved or reduced or increased by them. The Tribunal shall make the register available for inspection in such place or places and in such manner as the Secretary of State may direct.

Rents in
excess of
registered
rents and
premiums
illegal.

3.—(1) Where the rent payable for any premises is entered in the register under the provisions of this Act, it shall not be lawful to require or receive,

(a) on account of rent for those premises in respect of any period subsequent to the date of such entry, payment of any sum in excess of the rent so entered; or,

- (b) as a condition of the grant, renewal or continuance of a contract to which this Act applies relating to such premises, payment of any fine, premium or other like sum, or any consideration, in addition to the rent entered in the register.

(2) Where any payment or consideration has been made or received in contravention of the last foregoing subsection, the amount or value thereof shall be recoverable by the person by whom it was made or given.

4.—(1) The powers of a local authority under this Act may, if the local authority so resolve, be exercised by one of their officers appointed by the authority for the purpose. Provision as to powers and expenses of local authorities.

(2) A local authority shall have power to publish information regarding the provisions of this Act.

(3) Any expenses incurred by a local authority under this Act shall be defrayed out of such rate payable by owners and occupiers in equal proportions as the authority may determine.

5. Sections nine and ten of the Increase of Rent and Mortgage Interest (Restrictions) Act, 1920 (which relate respectively to limitation on rent of houses let furnished and to penalty for excessive charges for furnished lettings), shall not apply as regards the rent charged for any house or part of a house entered in the register under the provisions of this Act in respect of any period subsequent to such registration, but save as aforesaid nothing in this Act shall affect any provisions of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1939. Ss. 9 and 10 of 10 & 11 Geo. 5. c. 17 not to apply to registered dwelling houses.

6. The Secretary of State may make regulations— Regulations.

- (a) with regard to the tenure of office of Chairmen and other members of Tribunals ;
- (b) with regard to proceedings before Tribunals under this Act ;
- (c) for prescribing anything which is required by this Act to be prescribed ; and
- (d) generally for carrying into effect the provisions of this Act.

7.—(1) A person who requires or receives any payment or any consideration in contravention of section three of this Act shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for any period not exceeding six months, and without prejudice to any other method of recovery, the court by which he is convicted may order the amount paid or the value of the consideration given to be repaid to the person by whom the payment was made or the consideration given. Offences.

(2) If the lessor under a contract to which this Act applies refuses or fails without reasonable cause to comply with any provision of this Act requiring him to give any information in his possession regarding particulars required for registration under this Act, he shall be guilty of an offence and liable on summary conviction to a fine not exceeding twenty pounds or to imprisonment for any period not exceeding three months.

Certificates
to be evidence.

8. A document purporting to be a certificate signed by the clerk or other authorised officer of a Tribunal relating to any premises entered in the register shall, until the contrary is shown, be deemed to have been signed by such clerk or other officer, and shall be sufficient evidence of the matters therein contained.

Interpretation
and saving.

9.—(1) In this Act—

the expression “Tribunal” means a Tribunal appointed in pursuance of section one of this Act ;

the expression “local authority” means a county or a town council ;

the expression “register” means the register kept by a Tribunal in pursuance of subsection (4) of section two of this Act ;

the expression “services” includes attendance, the provision of heating or lighting, the supply of hot water and any other privilege or facility connected with the occupancy of a house or part of a house.

(2) Where separate sums are payable by the lessee of any premises to the lessor for any two or more of the following, namely :—

(a) occupation of the premises ;

(b) use of furniture ; and

(c) services ;

the expression “rent” shall, in relation to those premises, mean the aggregate of those sums, and where such sums are payable under separate contracts, those contracts shall be deemed to be one contract.

(3) Nothing in this Act shall apply to a house or part of a house let at a rent which includes payment in respect of board :

Provided that a house or part of a house shall not be deemed to be let at such a rent unless the value of such board to the lessee forms a substantial proportion of the whole rent.

Short title,
extent and
duration.

10.—(1) This Act may be cited as the Rent of Furnished Houses Control (Scotland) Act, 1943, and shall extend to Scotland only.

2 & 3 Geo. 6,
c. 62.

(2) This Act shall continue in force until the expiry of six months from the date when the Emergency Powers (Defence) Act, 1939, ceases to be in force.

SCHEDULE.

Section 1.

PROVISIONS REGARDING CONSTITUTION OF TRIBUNALS.

1. The Tribunal shall consist of a Chairman and two other members.
2. The Chairman and the other members of the Tribunal shall be appointed by the Secretary of State. During the absence or incapacity of any member a person appointed by the Secretary of State shall act in his place.
3. The members and acting members of the Tribunal shall receive such remuneration and such travelling and other allowances as the Secretary of State may, with the consent of the Treasury, determine.
4. The Secretary of State shall assign to the Tribunal a clerk and such other officers and servants, and there shall be paid to them such salaries and allowances, as the Secretary of State, with the consent of the Treasury, may determine.

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